Case Analysis and Legal Writing

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To be of any use,
the language of the law (like any other language),
must not only express, but convey thought.

David Mallingby
THE LANGUAGE OF THE LAW (1963)

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I. INTRODUCTION

The most basic function of lawyers is solving legal problems. The problems with which lawyers must deal are infinitely varied. Many of these problems are subsumed in a category requiring a reliable prediction of the probable consequences of a particular state of affairs. As Professor Marjorie D. Rombauer puts it,

reliable prediction requires identification of five (5) problem elements[1] (not necessarily in the order given):

1. Raw facts;
2. The law which may possibly control;
3. Legal question/s;
4. Legally significant facts; and
5. The law which will probably control.

The raw facts are given in the problem at hand and presented for resolution, while the law which may possibly control is found in the legal research procedure. In the search for the law in the broader sense, one also looks for precedents. These are decisions in individual cases which may serve as authority for decisions in future cases. Under our legal system, the courts will "stand" by these decisions and will not disturb settled points.[2] This is the doctrine of *stare decisis.*

There are several justifications for using *stare decisis* in our jurisdiction:

1. It encourages even-handed treatment of those who come before the courts;
2. It saves time and energy because the courts do not have to hear the same arguments on a point over and over again;
3. By contributing to the predictability of the law, it facilitates planning by private parties and encourages settlement of disputes;

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1. *Legal Problem Solving* 1 (1973).
2. *Black's Law Dictionary* 1261 (5th ed., 1979).

4. It provides a certain degree of protection from capricious or arbitrary judicial rulings; and

5. It helps maintain public faith in the Judiciary.[3]

Nevertheless, the Philippine Supreme Court recognizes that *stare decisis* does not require that clear error be continued, especially if such is inconsistent with subsequent developments like constitutional amendments or new legislation.

One important aspect of the doctrine of *stare decisis* is that judicial decisions do not have the same weight of authority. Some decisions are binding or mandatory while others are, at most, persuasive. Recognizing the difference between *mandatory* and *persuasive* precedents is critical to legal writing. In our court system, decisions of trial courts, or inferior appellate tribunals, do not make binding precedents. Under the *stare decisis* doctrine, inferior courts have a duty to adhere to the decisions of the Supreme Court until those decisions have been overruled or altered by legislation.

II. Basic Characteristics of Judicial Opinions

In considering the nature of decisions from a broader perspective, Professor Larry L. Teply notes that the following are basic characteristics of judicial opinions that should be recognized and remembered:[4]

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3. L.L. Teply, *Legal Writing and Oral Arguments* 156 (1990) citing the case of *Morgana v. U.S. Marine Lines,* 398 U.S. 375, 403-5 (1970).

4. L.L. Teply, *supra* note 3 at 103-5.

A. Judicial opinions reflect the principal activities of courts in the legal system.

Courts review the validity of legislative enactments, interpret their meaning, and determine their application. They perform a similar function with respect to administrative and executive actions. Courts also develop and enforce the unwritten common law through their decisions, and maintain the procedural and administrative integrity of the judicial system through their orders, rules, and regulations. It is one or more of these matters with which judicial opinions will be concerned.

B. Unlike legislatures, courts must wait for litigants to present disputes to them for decision, and these disputes must be real ones.

Judicial opinions are based on actual controversies, not hypothetical situations that may or may not arise. Furthermore, the courts must wait for the litigants to present these controversies for decision.

C. Except in limited circumstances, courts must decide cases within the scope of their subject-matter jurisdiction.

Subject-matter jurisdiction (a court's authority to hear certain types of cases) is determined by constitutional and statutory provisions. Judges cannot avoid deciding cases within their jurisdiction because the issues are too controversial or difficult. Occasionally, however, judges will devote a judicial opinion to explaining why they are refusing to decide a matter. The most common reasons include mootness, ripeness, and political questions.

D. The Philippine system of litigation is an adversary one, and judicial opinions necessarily reflect the parties' positions and arguments.

Courts refer frequently to the parties' contentions in the text of opinions, and sometimes reporters will summarize the parties' arguments. The parties' briefs are often available separately. Clearly, knowing what each party argued enhances one's understanding of the opinion. However, failure to distinguish between what a party has asserted and what the court has decided frequently confuses the reader of judicial opinions.

E. Courts state the reasons for their decisions in their opinions.

In their opinions, courts usually state the reasons for their decisions. This practice forces a court to carefully consider its decision and to inform the parties why it decided the case the way it did. This practice also assists others in predicting how the court may rule in similar situations in the future. Thus, in reading judicial opinions, significant emphasis should be placed on the reasoning articulated by the court.

F. Judges state the facts of the case in their opinions.

Judicial opinions ordinarily state in detail the facts of the case. Such statements ordinarily go beyond those facts that might be viewed as strictly relevant to the stated bases for the decision. These detailed factual statements play an important role in the process of growth and change in the law.

G. When legislation does not govern a dispute, courts will use the common law to resolve the matter.

The early English courts developed the Common Law by applying principles of justice, reason, and common sense to the particular situations presented for decision, which were also the sources of the American Common Law. Over time, American courts developed and modified this body of law, which was then applied to meet Philippine conditions and circumstances. Article 8 of the Civil Code provides that:

> Judicial decisions applying or interpreting the laws or the Constitution shall form part of the legal system of the Philippines.

This is reinforced by the provision that:

> No judge or court shall decline to render judgment by reason of the silence, obscurity or insufficiency of the laws.[5]

H. In their opinions, courts articulate general rules that cover a class of disputes or situations.

The courts usually articulate general rules that cover a class of disputes or situations in their opinions. In this way, judicial opinions are important sources of legal rules that order society and regulate human behavior. However, remember that over time, courts may find that they have stated a rule too broadly or too narrowly, or that exceptions should displace the rule.

I. Judicial decisions need not be unanimous.

Judges do not always agree. In deciding a case, the opinion of the majority of the court determines the outcome. Concurring and

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5. *Civil Code,* Art. 9.

dissenting opinions may be filed. These opinions are often useful for understanding the rationale of the majority of the court.

J. Judicial opinions vary in style, completeness, accuracy, and clarity.

In your research, it is necessary to take the time out to find the important rulings which are applicable to your problem under consideration.

III. Briefing a Case

Why is there a need to brief cases? The reason for briefing cases is that you will understand and remember them better than if you merely read them. This will also facilitate the organization of memorandum of law or appellate brief, as well as oral arguments before a court. Briefing involves three steps:

1. Carefully reading an opinion;
2. Selecting data from the plethora that the opinion contains; and
3. Inserting the data in an outline. Professor Gertrude Block suggests the following nine-point outline for briefing cases:[6]

A. Parties, Their Relationship, and How the Matter Reached This Court

The names of the parties usually appear in the caption at the beginning of the opinion. Their relationship also appear there, the plaintiff/s first, followed by the defendant/s after the "v." (for "versus"). When multiple parties are involved, list only the

6. *Effective Legal Writing* 94-96 (1988).

last name of the first litigant on each side. These are the names that appear in the body of the opinion. Even in captions reading, "In re..." or "In the Matter of...," there are at least two opposing parties, and their names should appear in your brief. In this section of your brief, indicate as well the status of each party, *e.g.,* "employer" and "employee," "appellant" and "appellee," "petitioner" and "respondent."

In "how the matter reached this court," briefly note any prior proceedings and explain why this court is now involved. Most of the cases you will brief are appellate court cases and their previous history should appear at the beginning of the opinion.

B. Legal Theories (Cause/s of Action and Defense)

These are the legal rules that form the basis of the plaintiff's claim. The plaintiff always advances one or more legal theories in order to obtain his desired objective. The defendant may also advance one or more legal theories if, instead of merely denying the validity of the plaintiff's cause of action, he raises a separate claim (an 'affirmative defense'), called a 'counterclaim.'

C. Facts

The fact section of your brief contains a succinct summary of the salient information, often called "key facts," of the opinion. Key facts are those facts upon which the court based its holding, and most importantly, those facts that could not be omitted or altered without changing the decision.

D. Relief Requested

The plaintiff states here what he hopes to achieve by going to court, *i.e.,* his 'remedy.' In some cases, the relief requested is in the form of money.

E. Issues

Issues are the precise legal questions that must be resolved by the court in order to reach its decision in the case under consideration. Often the issues are expressly stated in the opinion. If not, such can be identified by reading the court's holding and the reasons given to support it. The complete issue is the rule of law applied to the key facts of the case at hand.

F. Holding/s and Disposition

The holding is stated as the court's affirmative or negative response to the issue. In its entirety, it contains the rule of law that was applied and the key facts of the case. In your own briefs of case opinions, however, you will probably include only a short answer to the issue (*i.e.,* 'yes' or 'no') because you have already completely stated the rule of law and the key facts in the issue statement.

The disposition is whatever the court says it will do procedurally as a result of its holding. Stated in a few words, it usually comes at the end of the opinion (*e.g.,* "vacated and remanded").

G. Reasoning

In its reasoning, the court justifies its holding on each issue. When the case presents more than one issue, the court may intermingle the reasoning behind its holding on several issues, but it should still separate the court's statements and the reasoning applied to each issue. To identify the reasoning of the court, look for its reasons for agreeing with one party and disagreeing with the other, for accepting some legal precedents and rejecting others, and for extending or limiting other courts' opinions. Also look for the court's citation of enacted law and its interpretation of the intent of that law.

H. Resulting Legal Rule/s

The legal rule is a broad statement of principle developed by or applied in this decision. The rule may then become precedent for analogous cases in future decisions. Few decisions enunciate a new legal rule; many cite a rule previously developed and applied in the case at hand. This item and that which follows, 'dictum,' are often omitted from briefs. However, they are helpful in placing the case under consideration into perspective, with respect to cases that have preceded or will follow it.

I. Dictum

Dictum (the plural of which is 'dicta') is an official, but incidental and gratuitous, language that is unnecessary to the decision of the case under consideration. Since courts are supposed to reach decisions only on the narrow questions before them, decisions theoretically should not contain dicta, but they sometimes do. Dictum can be recognized as any statement a court makes based on facts other than those presented in the controversy, or any conclusion a court reaches based upon law that is not applicable to the controversy. Dictum should be identified because courts may agree later with the view expressed as such, although it is not binding on subsequent court decisions any more than the minority decision.

IV. Analogizing and Synthesizing

Analogizing cases involves selecting information from your case briefs and applying it to other cases or fact situations in order to make predictions about the decision a court will reach, at the same time considering new facts presented by the problem at hand.

A. Steps in Applying Analogy

Analogizing, or pointing out similarities and differences among cases, is the primary form of legal reasoning. It is of great importance to legal arguments because of the doctrine of *stare decisis* which rests upon the presumption that justice requires the law to treat persons similarly in similar circumstances.

You will rely on precedent when you compare your case or fact situation to earlier cases or fact situations. You cannot apply precedent to the facts of your case, however, unless:

1. Your case is analogous in significant respects to the case you are comparing it with; and
2. The opinion in the earlier case is either binding upon your case or persuasive to it.

A case is considered analogous to a previous case if its key facts and the rule of law to be applied are similar. Conversely, if either the key facts or the applicable rule of law is different, then the case can be distinguished from the preceding case and the doctrine of precedent will not apply.

To apply analogy, there are four (4) steps to be followed:

1. Compare and contrast the key facts of the precedent cases with your facts;
2. If the key facts are similar, extract from the earlier cases the legal principle/s upon which these cases were decided;
3. Apply these principles to your case;
4. Arrive at a conclusion based upon the application of those principles to your case.[7]

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7. G. Block, *supra* note 7 at 125-6.

B. Synthesizing[8]

A case synthesis is a summary of two or more cases, describing their similarities and differences. Through synthesis, it can be discovered why appellate courts sometimes reach similar conclusions in cases with seemingly different facts, as well as different conclusions in seemingly similar cases. Case syntheses also illustrate how legal rules are expanded, narrowed, or abandoned by court opinions.

In writing a case synthesis:

I. Make an introductory statement broad enough to include all of the cases you are comparing, but narrow enough to exclude other cases.

2. Show, by analyzing your briefs of the cases, how the cases resemble each other and how they differ. (That is, analogize and distinguish the cases.) In your analysis, discuss the following:

   a. Causes of action;

   b. Issues raised;

   c. Holdings of the courts;

   d. Rule/s formulated, applied, expanded, narrowed, or overturned; and

   e. Reasoning of the courts.

3. Come to some conclusion/s as a result of your analysis. For example, what legal rule/s would result from these decisions? What trend do the decisions indicate? Can you predict the outcome of similar cases? (That is, will the

8. Taken from G. Block, *supra* note 7 at 93-4, 134.

legal rule be retained intact, expanded, narrowed, or abandoned in subsequent cases?)

V. Formulating Arguments and Using Persuasive Writing Techniques

Persuasion is one of the important skills used by lawyers. It is used in memoranda in support of motions, position papers, trial and appellate briefs, and settlement proposals and letters.

A. Types of Arguments[9]

According to Professor Teply, persuasive writing in law practice is ordinarily a blend of three types of arguments:

1. Logical

Persuasive legal writing uses logical arguments – principally deductive reasoning and analogy. These arguments most often rely on the authority of prior decisions or the application of statutes.

2. Emotional

Persuasive legal writing uses, in part, emotional arguments – principally fairness and bias. Courts are sensitive to appeals contending that the application of the "letter of the law" may result in unfairness. Usually, judges are receptive to resolutions that avoid harsh or undesirable results. Moreover, lawyers have traditionally argued in subtle ways for positions that aid the poor, the feeble, the oppressed, and the suffering. Arguments based on

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9. L.L. Teply, *supra* note 3 at 304.